SUPREME COURT OF THE UNITED STATES

JONATHAN LEE, ET AL. *v.* POUDRE SCHOOL DISTRICT R–1

ON PETITION FOR WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE TENTH CIRCUIT

No. 25–89. Decided October 14, 2025

The petition for a writ of certiorari is denied.

Statement of JUSTICE ALITO, with whom JUSTICE THOMAS and JUSTICE GORSUCH join, respecting the denial of certiorari.

I concur in the denial of certiorari because petitioners do not challenge the ground for the ruling below. But I remain concerned that some federal courts are "tempt[ed]" to avoid confronting a "particularly contentious constitutional questio[n]": whether a school district violates parents' fundamental rights "when, without parental knowledge or consent, it encourages a student to transition to a new gender or assists in that process." *Parents Protecting Our Children, UA* v. *Eau Claire Area School Dist.*, 604 U. S. ___, ___–___ (2024) (ALITO, J., dissenting from denial of certiorari) (slip op., at 1–2) (citing *Troxel* v. *Granville*, 530 U. S. 57, 70 (2000) (plurality opinion)). Petitioners tell us that nearly 6,000 public schools have policies—as respondent allegedly does—that purposefully interfere with parents' access to critical information about their children's gender-identity choices and school personnel's involvement in and influence on those choices. Pet. for Cert. 24. The troubling—and tragic—allegations in this case underscore the "great and growing national importance" of the question that these parent petitioners present. *Parents Protecting Our Children*, 604 U. S., at ___ (slip op., at 1).